

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 877

Introduced by Hallstrom, 1.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating the Uniform Controlled Substances Act; to
- 2 amend section 28-401, Revised Statutes Cumulative Supplement, 2024,
- 3 and section 28-405, Revised Statutes Supplement, 2025; to designate
- 4 certain substances as controlled substances; to define a term; to
- 5 correct the spelling of certain substances; and to repeal the
- 6 original section.
- 7 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 28-401, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 28-401 As used in the Uniform Controlled Substances Act, unless the
4 context otherwise requires:

5 (1) Administer means to directly apply a controlled substance by
6 injection, inhalation, ingestion, or any other means to the body of a
7 patient or research subject;

8 (2) Agent means an authorized person who acts on behalf of or at the
9 direction of another person but does not include a common or contract
10 carrier, public warehouse keeper, or employee of a carrier or warehouse
11 keeper;

12 (3) Administration means the Drug Enforcement Administration of the
13 United States Department of Justice;

14 (4) Controlled substance means a drug, biological, substance, or
15 immediate precursor in Schedules I through V of section 28-405.
16 Controlled substance does not include distilled spirits, wine, malt
17 beverages, tobacco, hemp, or any nonnarcotic substance if such substance
18 may, under the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. 301 et
19 seq., as such act existed on January 1, 2014, and the law of this state,
20 be lawfully sold over the counter without a prescription;

21 (5) Counterfeit substance means a controlled substance which, or the
22 container or labeling of which, without authorization, bears the
23 trademark, trade name, or other identifying mark, imprint, number, or
24 device, or any likeness thereof, of a manufacturer, distributor, or
25 dispenser other than the person or persons who in fact manufactured,
26 distributed, or dispensed such substance and which thereby falsely
27 purports or is represented to be the product of, or to have been
28 distributed by, such other manufacturer, distributor, or dispenser;

29 (6) Department means the Department of Health and Human Services;

30 (7) Division of Drug Control means the personnel of the Nebraska
31 State Patrol who are assigned to enforce the Uniform Controlled

1 Substances Act;

2 (8) Dispense means to deliver a controlled substance to an ultimate
3 user or a research subject pursuant to a medical order issued by a
4 practitioner authorized to prescribe, including the packaging, labeling,
5 or compounding necessary to prepare the controlled substance for such
6 delivery;

7 (9) Distribute means to deliver other than by administering or
8 dispensing a controlled substance;

9 (10) Prescribe means to issue a medical order;

10 (11) Drug means (a) articles recognized in the official United
11 States Pharmacopoeia, official Homeopathic Pharmacopoeia of the United
12 States, official National Formulary, or any supplement to any of them,
13 (b) substances intended for use in the diagnosis, cure, mitigation,
14 treatment, or prevention of disease in human beings or animals, and (c)
15 substances intended for use as a component of any article specified in
16 subdivision (a) or (b) of this subdivision, but does not include devices
17 or their components, parts, or accessories;

18 (12) Deliver or delivery means the actual, constructive, or
19 attempted transfer from one person to another of a controlled substance,
20 whether or not there is an agency relationship;

21 (13) Hemp has the same meaning as in section 2-503;

22 (14)(a) Marijuana means all parts of the plant of the genus
23 cannabis, whether growing or not, the seeds thereof, and every compound,
24 manufacture, salt, derivative, mixture, or preparation of such plant or
25 its seeds.

26 (b) Marijuana does not include the mature stalks of such plant,
27 hashish, tetrahydrocannabinols extracted or isolated from the plant,
28 fiber produced from such stalks, oil or cake made from the seeds of such
29 plant, any other compound, manufacture, salt, derivative, mixture, or
30 preparation of such mature stalks, the sterilized seed of such plant
31 which is incapable of germination, or cannabidiol contained in a drug

1 product approved by the federal Food and Drug Administration.

2 (c) Marijuana does not include hemp.

3 (d) When the weight of marijuana is referred to in the Uniform
4 Controlled Substances Act, it means its weight at or about the time it is
5 seized or otherwise comes into the possession of law enforcement
6 authorities, whether cured or uncured at that time;

7 (15) Manufacture means the production, preparation, propagation,
8 conversion, or processing of a controlled substance, either directly or
9 indirectly, by extraction from substances of natural origin,
10 independently by means of chemical synthesis, or by a combination of
11 extraction and chemical synthesis, and includes any packaging or
12 repackaging of the substance or labeling or relabeling of its container.
13 Manufacture does not include the preparation or compounding of a
14 controlled substance by an individual for his or her own use, except for
15 the preparation or compounding of components or ingredients used for or
16 intended to be used for the manufacture of methamphetamine, or the
17 preparation, compounding, conversion, packaging, or labeling of a
18 controlled substance: (a) By a practitioner as an incident to his or her
19 prescribing, administering, or dispensing of a controlled substance in
20 the course of his or her professional practice; or (b) by a practitioner,
21 or by his or her authorized agent under his or her supervision, for the
22 purpose of, or as an incident to, research, teaching, or chemical
23 analysis and not for sale;

24 (16) Narcotic drug means any of the following, whether produced
25 directly or indirectly by extraction from substances of vegetable origin,
26 independently by means of chemical synthesis, or by a combination of
27 extraction and chemical synthesis: (a) Opium, opium poppy and poppy
28 straw, coca leaves, and opiates; (b) a compound, manufacture, salt,
29 derivative, or preparation of opium, coca leaves, or opiates; or (c) a
30 substance and any compound, manufacture, salt, derivative, or preparation
31 thereof which is chemically equivalent to or identical with any of the

1 substances referred to in subdivisions (a) and (b) of this subdivision,
2 except that the words narcotic drug as used in the Uniform Controlled
3 Substances Act does not include decocainized coca leaves or extracts of
4 coca leaves, which extracts do not contain cocaine or ecgonine, or
5 isoquinoline alkaloids of opium;

6 (17) Opiate means any substance having an addiction-forming or
7 addiction-sustaining liability similar to morphine or being capable of
8 conversion into a drug having such addiction-forming or addiction-
9 sustaining liability. Opiate does not include the dextrorotatory isomer
10 of 3-methoxy-n methylmorphinan and its salts. Opiate includes its racemic
11 and levorotatory forms;

12 (18) Opium poppy means the plant of the species *Papaver somniferum*
13 L., except the seeds thereof;

14 (19) Poppy straw means all parts, except the seeds, of the opium
15 poppy after mowing;

16 (20) Person means any corporation, association, partnership, limited
17 liability company, or one or more persons;

18 (21) Practitioner means a physician, a physician assistant, a
19 dentist, a veterinarian, a pharmacist, a podiatrist, an optometrist, a
20 certified nurse midwife, a certified registered nurse anesthetist, a
21 nurse practitioner, a scientific investigator, a pharmacy, a hospital, or
22 any other person licensed, registered, or otherwise permitted to
23 distribute, dispense, prescribe, conduct research with respect to, or
24 administer a controlled substance in the course of practice or research
25 in this state, including an emergency medical service as defined in
26 section 38-1207;

27 (22) Production includes the manufacture, planting, cultivation, or
28 harvesting of a controlled substance;

29 (23) Immediate precursor means a substance which is the principal
30 compound commonly used or produced primarily for use and which is an
31 immediate chemical intermediary used or likely to be used in the

1 manufacture of a controlled substance, the control of which is necessary
2 to prevent, curtail, or limit such manufacture;

3 (24) State means the State of Nebraska;

4 (25) Ultimate user means a person who lawfully possesses a
5 controlled substance for his or her own use, for the use of a member of
6 his or her household, or for administration to an animal owned by him or
7 her or by a member of his or her household;

8 (26) Hospital has the same meaning as in section 71-419;

9 (27) Cooperating individual means any person, other than a
10 commissioned law enforcement officer, who acts on behalf of, at the
11 request of, or as agent for a law enforcement agency for the purpose of
12 gathering or obtaining evidence of offenses punishable under the Uniform
13 Controlled Substances Act;

14 (28)(a) Hashish or concentrated cannabis means (i) the separated
15 resin, whether crude or purified, obtained from a plant of the genus
16 cannabis or (ii) any material, preparation, mixture, compound, or other
17 substance which contains ten percent or more by weight of
18 tetrahydrocannabinols.

19 (b) When resins extracted from hemp as defined in section 2-503 are
20 in the possession of a person as authorized under the Nebraska Hemp
21 Farming Act, they are not considered hashish or concentrated cannabis for
22 purposes of the Uniform Controlled Substances Act.

23 (c) Hashish or concentrated cannabis does not include cannabidiol
24 contained in a drug product approved by the federal Food and Drug
25 Administration;

26 (29) Exceptionally hazardous drug means (a) a narcotic drug, (b)
27 thiophene analog of phencyclidine, (c) phencyclidine, (d) amobarbital,
28 (e) secobarbital, (f) pentobarbital, (g) amphetamine, or (h)
29 methamphetamine;

30 (30) Imitation controlled substance means a substance which is not a
31 controlled substance or controlled substance analogue but which, by way

1 of express or implied representations and consideration of other relevant
2 factors including those specified in section 28-445, would lead a
3 reasonable person to believe the substance is a controlled substance or
4 controlled substance analogue. A placebo or registered investigational
5 drug manufactured, distributed, possessed, or delivered in the ordinary
6 course of practice or research by a health care professional shall not be
7 deemed to be an imitation controlled substance;

8 (31)(a) Controlled substance analogue means a substance (i) the
9 chemical structure of which is substantially similar to the chemical
10 structure of a Schedule I or Schedule II controlled substance as provided
11 in section 28-405 or (ii) which has a stimulant, depressant, analgesic,
12 or hallucinogenic effect on the central nervous system that is
13 substantially similar to or greater than the stimulant, depressant,
14 analgesic, or hallucinogenic effect on the central nervous system of a
15 Schedule I or Schedule II controlled substance as provided in section
16 28-405. A controlled substance analogue shall, to the extent intended for
17 human consumption, be treated as a controlled substance under Schedule I
18 of section 28-405 for purposes of the Uniform Controlled Substances Act;
19 and

20 (b) Controlled substance analogue does not include (i) a controlled
21 substance, (ii) any substance generally recognized as safe and effective
22 within the meaning of the Federal Food, Drug, and Cosmetic Act, 21 U.S.C.
23 301 et seq., as such act existed on January 1, 2014, (iii) any substance
24 for which there is an approved new drug application, or (iv) with respect
25 to a particular person, any substance if an exemption is in effect for
26 investigational use for that person, under section 505 of the Federal
27 Food, Drug, and Cosmetic Act, 21 U.S.C. 355, as such section existed on
28 January 1, 2014, to the extent conduct with respect to such substance is
29 pursuant to such exemption;

30 (32) Anabolic steroid means any drug or hormonal substance,
31 chemically and pharmacologically related to testosterone (other than

1 estrogens, progestins, and corticosteroids), that promotes muscle growth
2 and includes any controlled substance in Schedule III(d) of section
3 28-405. Anabolic steroid does not include any anabolic steroid which is
4 expressly intended for administration through implants to cattle or other
5 nonhuman species and has been approved by the Secretary of Health and
6 Human Services for such administration, but if any person prescribes,
7 dispenses, or distributes such a steroid for human use, such person shall
8 be considered to have prescribed, dispensed, or distributed an anabolic
9 steroid within the meaning of this subdivision;

10 (33) Chart order means an order for a controlled substance issued by
11 a practitioner for a patient who is in the hospital where the chart is
12 stored or for a patient receiving detoxification treatment or maintenance
13 treatment pursuant to section 28-412. Chart order does not include a
14 prescription;

15 (34) Medical order means a prescription, a chart order, or an order
16 for pharmaceutical care issued by a practitioner;

17 (35) Prescription means an order for a controlled substance issued
18 by a practitioner. Prescription does not include a chart order;

19 (36) Registrant means any person who has a controlled substances
20 registration issued by the state or the Drug Enforcement Administration
21 of the United States Department of Justice;

22 (37) Reverse distributor means a person whose primary function is to
23 act as an agent for a pharmacy, wholesaler, manufacturer, or other entity
24 by receiving, inventorying, and managing the disposition of outdated,
25 expired, or otherwise nonsaleable controlled substances;

26 (38) Signature means the name, word, or mark of a person written in
27 his or her own hand with the intent to authenticate a writing or other
28 form of communication or a digital signature which complies with section
29 86-611 or an electronic signature;

30 (39) Facsimile means a copy generated by a system that encodes a
31 document or photograph into electrical signals, transmits those signals

1 over telecommunications lines, and reconstructs the signals to create an
2 exact duplicate of the original document at the receiving end;

3 (40) Electronic signature has the definition found in section
4 86-621;

5 (41) Electronic transmission means transmission of information in
6 electronic form. Electronic transmission includes computer-to-computer
7 transmission or computer-to-facsimile transmission;

8 (42) Long-term care facility means an intermediate care facility, an
9 intermediate care facility for persons with developmental disabilities, a
10 long-term care hospital, a mental health substance use treatment center,
11 a nursing facility, or a skilled nursing facility, as such terms are
12 defined in the Health Care Facility Licensure Act;

13 (43) Compounding has the same meaning as in section 38-2811;

14 (44) Cannabinoid receptor agonist means any chemical compound or
15 substance that, according to scientific or medical research, study,
16 testing, or analysis, demonstrates the presence of binding activity at
17 one or more of the CB1 or CB2 cell membrane receptors located within the
18 human body. Cannabinoid receptor agonist does not include cannabidiol
19 contained in a drug product approved by the federal Food and Drug
20 Administration; and

21 (45) Lookalike substance means a product or substance, not
22 specifically designated as a controlled substance in section 28-405, that
23 is either portrayed in such a manner by a person to lead another person
24 to reasonably believe that it produces effects on the human body that
25 replicate, mimic, or are intended to simulate the effects produced by a
26 controlled substance or that possesses one or more of the following
27 indicia or characteristics:

28 (a) The packaging or labeling of the product or substance suggests
29 that the user will achieve euphoria, hallucination, mood enhancement,
30 stimulation, or another effect on the human body that replicates or
31 mimics those produced by a controlled substance;

1 (b) The name or packaging of the product or substance uses images or
2 labels suggesting that it is a controlled substance or produces effects
3 on the human body that replicate or mimic those produced by a controlled
4 substance;

5 (c) The product or substance is marketed or advertised for a
6 particular use or purpose and the cost of the product or substance is
7 disproportionately higher than other products or substances marketed or
8 advertised for the same or similar use or purpose;

9 (d) The packaging or label on the product or substance contains
10 words or markings that state or suggest that the product or substance is
11 in compliance with state and federal laws regulating controlled
12 substances;

13 (e) The owner or person in control of the product or substance uses
14 evasive tactics or actions to avoid detection or inspection of the
15 product or substance by law enforcement authorities;

16 (f) The owner or person in control of the product or substance makes
17 a verbal or written statement suggesting or implying that the product or
18 substance is a synthetic drug or that consumption of the product or
19 substance will replicate or mimic effects on the human body to those
20 effects commonly produced through use or consumption of a controlled
21 substance;

22 (g) The owner or person in control of the product or substance makes
23 a verbal or written statement to a prospective customer, buyer, or
24 recipient of the product or substance implying that the product or
25 substance may be resold for profit; or

26 (h) The product or substance contains a chemical or chemical
27 compound that does not have a legitimate relationship to the use or
28 purpose claimed by the seller, distributor, packer, or manufacturer of
29 the product or substance or indicated by the product name, appearing on
30 the product's packaging or label or depicted in advertisement of the
31 product or substance; and -

1 (46) 7-Hydroxymitragynine means any substance that contains a level
2 of methyl (E)-2-(3-ethyl-7a-hydroxy-8-methoxy-2,3,4,6,7,12b-hexahydro-1H-
3 indolo[2,3-a]quinolizin-2-yl)-3-methoxy-prop-2-enoate in the alkaloid
4 fraction that is greater than two percent of the alkaloid composition of
5 the substance.

6 **Sec. 2.** Section 28-405, Revised Statutes Supplement, 2025, is
7 amended to read:

8 28-405 The following are the schedules of controlled substances
9 referred to in the Uniform Controlled Substances Act, unless specifically
10 contained on the list of exempted products of the Drug Enforcement
11 Administration of the United States Department of Justice as the list
12 existed on January 31, 2022:

13 Schedule I

14 (a) Any of the following opiates, including their isomers, esters,
15 ethers, salts, and salts of isomers, esters, and ethers, unless
16 specifically excepted, whenever the existence of such isomers, esters,
17 ethers, and salts is possible within the specific chemical designation:

18 (1) Acetylmethadol;

19 (2) Allylprodine;

20 (3) Alphacetylmethadol, except levo-alphacetylmethadol which is also
21 known as levo-alpha-acetylmethadol, levomethadyl acetate, and LAAM;

22 (4) Alphameprodine;

23 (5) Alphamethadol;

24 (6) Benzethidine;

25 (7) Betacetylmethadol;

26 (8) Betameprodine;

27 (9) Betamethadol;

28 (10) Betaprodine;

29 (11) Clonitazene;

30 (12) Dextromoramide;

31 (13) Difenoxyin;

- 1 (14) Diampromide;
- 2 (15) Diethylthiambutene;
- 3 (16) Dimenoxadol;
- 4 (17) Dimepheptanol;
- 5 (18) Dimethylthiambutene;
- 6 (19) Dioxaphetyl butyrate;
- 7 (20) Dipipanone;
- 8 (21) Ethylmethylthiambutene;
- 9 (22) Etonitazene;
- 10 (23) Etoxeridine;
- 11 (24) Furethidine;
- 12 (25) Hydroxypethidine;
- 13 (26) Ketobemidone;
- 14 (27) Levomoramide;
- 15 (28) Levophenacylmorphane;
- 16 (29) Morpheridine;
- 17 (30) Noracymethadol;
- 18 (31) Norlevorphanol;
- 19 (32) Normethadone;
- 20 (33) Norpipanone;
- 21 (34) Phenadoxone;
- 22 (35) Phenampromide;
- 23 (36) Phenomorphan;
- 24 (37) Phenoperidine;
- 25 (38) Piritramide;
- 26 (39) Proheptazine;
- 27 (40) Properidine;
- 28 (41) Propiram;
- 29 (42) Racemoramide;
- 30 (43) Trimeperidine;
- 31 (44) Alpha-methylfentanyl, N-(1-(alpha-methyl-beta-phenyl)ethyl)-4-

1 piperidyl) propionanilide, 1-(1-methyl-2-phenylethyl)-4-(N-propanilido)
2 piperidine;
3 (45) Tilidine;
4 (46) 3-Methylfentanyl, N-(3-methyl-1-(2-phenylethyl)-4-piperidyl)-N-
5 phenylpropanamide, its optical and geometric isomers, salts, and salts of
6 isomers;
7 (47) 1-methyl-4-phenyl-4-propionoxypiperidine (MPPP), its optical
8 isomers, salts, and salts of isomers;
9 (48) PEPAP, 1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine, its
10 optical isomers, salts, and salts of isomers;
11 (49) Acetyl-alpha-methylfentanyl, N-(1-(1-methyl-2-phenethyl)-4-
12 piperidinyl)-N-phenylacetamide, its optical isomers, salts, and salts of
13 isomers;
14 (50) Alpha-methylthiofentanyl, N-(1-methyl-2-(2-thienyl)ethyl-4-
15 piperidinyl)-N-phenylpropanamide, its optical isomers, salts, and salts
16 of isomers;
17 (51) Benzylfentanyl, N-(1-benzyl-4-piperidyl)-N-phenylpropanamide,
18 its optical isomers, salts, and salts of isomers;
19 (52) Beta-hydroxyfentanyl, N-(1-(2-hydroxy-2-phenethyl)-4-
20 piperidinyl)-N-phenylpropanamide, its optical isomers, salts, and salts
21 of isomers;
22 (53) Beta-hydroxy-3-methylfentanyl, (other name: N-(1-(2-hydroxy-2-
23 phenethyl)-3-methyl-4-piperidinyl)-N-phenylpropanamide), its optical and
24 geometric isomers, salts, and salts of isomers;
25 (54) 3-methylthiofentanyl, N-(3-methyl-1-(2-thienyl)ethyl-4-
26 piperidinyl)-N-phenylpropanamide, its optical and geometric isomers,
27 salts, and salts of isomers;
28 (55) N-(1-(2-thienyl)methyl-4-piperidyl)-N-phenylpropanamide
29 (thenylfentanyl), its optical isomers, salts, and salts of isomers;
30 (56) Thiofentanyl, N-phenyl-N-(1-(2-thienyl)ethyl-4-piperidinyl)-
31 propanamide, its optical isomers, salts, and salts of isomers;

- 1 (57) Para-fluorofentanyl, N-(4-fluorophenyl)-N-(1-(2-phenethyl)-4-
2 piperidinyl)propanamide, its optical isomers, salts, and salts of
3 isomers;
- 4 (58) U-47700, 3,4-dichloro-N-[2-(dimethylamino)cyclohexyl]-N-
5 methylbenzamide;
- 6 (59) 4-Fluoroisobutyryl Fentanyl;
- 7 (60) Acetyl Fentanyl;
- 8 (61) Acetyl fentanyl;
- 9 (62) AH-7921; 3, 4-dichloro-N-[(1-dimethylamino) cyclohexylmethyl]
10 benzamide;
- 11 (63) Butyryl fentanyl;
- 12 (64) Cyclopentyl fentanyl;
- 13 (65) Cyclopropyl fentanyl;
- 14 (66) Furanyl fentanyl;
- 15 (67) Isobutyryl fentanyl;
- 16 (68) Isotonitazene;
- 17 (69) Methoxyacetyl fentanyl;
- 18 (70) MT-45; 1-cyclohexyl-4-(1,2-diphenylethyl) piperazine;
- 19 (71) Tetrahydrofuranyl fentanyl;
- 20 (72) 2-fluorofentanyl; N-(2-fluorophenyl)-N-(1-phenethylpiperidin-4-
21 yl) propionamide;
- 22 (73) Oxycodone;
- 23 (74) Ortho-Fluorofentanyl;
- 24 (75) Para-chloroisobutyryl fentanyl;
- 25 (76) Para-Fluorobutyryl Fentanyl;
- 26 (77) Valeryl fentanyl;
- 27 (78) Phenyl Fentanyl;
- 28 (79) Para-Methylfentanyl;
- 29 (80) Thiofuranyl Fentanyl;
- 30 (81) Beta-methyl Fentanyl;
- 31 (82) Beta'-Phenyl Fentanyl;

- 1 (83) Crotonyl Fentanyl;
- 2 (84) 2'-Fluoro Ortho-Fluorofentanyl;
- 3 (85) 4'-Methyl Acetyl Fentanyl;
- 4 (86) Ortho-Fluorobutyryl Fentanyl;
- 5 (87) Ortho-Methyl Acetylfentanyl;
- 6 (88) Ortho-Methyl Methoxyacetyl Fentanyl;
- 7 (89) Ortho-Fluoroacryl Fentanyl;
- 8 (90) Fentanyl Carbamate;
- 9 (91) Ortho-Fluoroisobutyryl Fentanyl;
- 10 (92) Para-Fluoro Furanyl Fentanyl;
- 11 (93) Para-Methoxybutyryl Fentanyl;
- 12 (94) Meta-Fluorofentanyl (N-(3-fluorophenyl)-N-(1-
13 phenethylpiperidin-4-yl)propionamide);
- 14 (95) Meta-Fluoroisobutyryl fentanyl (N-(3-fluorophenyl)-N-(1-
15 phenethylpiperidin-4-yl)isobutyramide);
- 16 (96) Para-Methoxyfuranyl fentanyl (N-(4-methoxyphenyl)-N-(1-
17 phenethylpiperidin-4-yl)furan-2-carboxamide);
- 18 (97) 3-Furanyl fentanyl (N-(1-phenethylpiperidin-4-yl)-N-
19 phenylfuran-3-carboxamide);
- 20 (98) 2',5'-Dimethoxyfentanyl (N-(1-(2,5-
21 dimethoxyphenethyl)piperidin-4-yl)-N-phenylpropionamide);
- 22 (99) Isovaleryl fentanyl (3-methyl-N-(1-phenethylpiperidin-4-yl)-N-
23 phenylbutanamide);
- 24 (100) Ortho-Fluorofuranyl fentanyl (N-(2-fluorophenyl)-N-(1-
25 phenethylpiperidin-4-yl)furan-2-carboxamide);
- 26 (101) Alpha-Methylbutyryl fentanyl (2-methyl-N-(1-
27 phenethylpiperidin-4-yl)-N-phenylbutanamide);
- 28 (102) Para-methyl cyclopropyl fentanyl (N-(4-methylphenyl)-N-(1-
29 phenethylpiperidin-4-yl)cyclopropanecarboxamide);
- 30 (103) Butonitazene (2-(2-(4-butoxybenzyl)-5-nitro-1H-benzimidazol-1-
31 yl)-N,N-diethylethan-1-amine);

1 (104) Flunitazene (N,N-diethyl-2-(2-(4-fluorobenzyl)-5-nitro-1H-
2 benzimidazol-1-yl)ethan-1-amine);

3 (105) Metodesnitazene (N,N-diethyl-2-(2-(4-methoxybenzyl)-1H-
4 benzimidazol-1-yl)ethan-1-amine);

5 (106) Etodesnitazene (other names: 2-(2-(4-ethoxybenzyl)-1H-
6 benzimidazol-1-yl)-N,N-diethylethan-1-amine; and etazene);

7 (107) N-pyrrolidino etonitazene (other names: 2-(4-ethoxybenzyl)-5-
8 nitro-1-(2-(pyrrolidin-1-yl)ethyl)-1H-benzimidazole; and etonitazepyne);

9 (108) Protonitazene (N,N-diethyl-2-(5-nitro-2-(4-propoxybenzyl)-1H-
10 benzimidazol-1-yl)ethan-1-amine);

11 (109) 1-(2-methyl-4-(3-phenylprop-2-en-1-yl)piperazin-1-yl)butan-1-
12 one (commonly known as 2-Methyl AP-237);

13 (110) Brorphine 1-(1-(1-(4-bromophenyl)ethyl)piperidin-4-yl)-1,3-
14 dihydro-2H-benzo[d]imidazol-2-one) ~~(other name: 1-(1-(1-(4-bromophenyl)~~
15 ~~ethyl)piperidin-4-yl)-1,3-dihydro-2H-benzo[D]imidazole-2-one);~~

16 (111) Fentanyl-related substances, their isomers, esters, ethers,
17 salts and salts of isomers, esters, and ethers. Unless specifically
18 excepted, listed in another schedule, or specifically named in this
19 schedule, this includes any substance that is structurally related to
20 fentanyl by one or more of the following modifications:

21 (A) Replacement of the phenyl portion of the phenethyl group by any
22 monocycle, whether or not further substituted in or on the monocycle;

23 (B) Substitution in or on the phenethyl group with alkyl, alkenyl,
24 alkoxyl, hydroxyl, halo, haloalkyl, amino, or nitro groups;

25 (C) Substitution in or on the piperidine ring with alkyl, alkenyl,
26 alkoxyl, ester, ether, hydroxyl, halo, haloalkyl, amino, or nitro groups;

27 (D) Replacement of the aniline ring with any aromatic monocycle
28 whether or not further substituted in or on the aromatic monocycle; or

29 (E) Replacement of the N-propionyl group by another acyl group; and

30 (112) Metonitazene (N,N-diethyl-2-(2-(4-methoxybenzyl)-5-nitro-1H-
31 benzimidazol-1-yl)ethan-1-amine); -

- 1 (113) Para-chlorofentanyl (N-(4-chlorophenyl)-N-(1-
2 phenethylpiperidin-4-yl)propionamide);
- 3 (114) Ortho-chlorofentanyl (N-(2-chlorophenyl)-N-(1-
4 phenethylpiperidin-4-yl)propionamide);
- 5 (115) Meta-fluorofuranyl fentanyl (N-(3-fluorophenyl)-N-(1-
6 phenethylpiperidin-4-yl)furan-2-carboxamide);
- 7 (116) Ortho-methylcyclopropyl fentanyl (N-(2-methylphenyl)-N-(1-
8 phenethylpiperidin-4-yl)cyclopropanecarboxamide);
- 9 (117) Beta-methylacetyl fentanyl (N-phenyl-N-(1-(2-
10 phenylpropyl)piperidin-4-yl)acetamide);
- 11 (118) Tetrahydrothiofuranyl fentanyl (N-(1-phenethylpiperidin-4-yl)-
12 N-phenyltetrahydrothiophene-2-carboxamide);
- 13 (119) Para-fluoro valeryl fentanyl (N-(4-fluorophenyl)-N-(1-
14 phenethylpiperidin-4-yl)pentanamide);
- 15 (120) Ethyleneoxynitazene (2-(2-((2,3-Dihydrobenzofuran-5-
16 yl)methyl)-5-nitro-1H-benzimidazol-1-yl)-N,N-diethylethan-1-amine);
- 17 (121) Methylenedioxynitazene (other names: 2-(2-(Benzodioxol-5-
18 ylmethyl)-5-nitro-1H-benzimidazol-1-yl)-N,N-diethylethan-1-amine and
19 3',4'-methylenedioxynitazene);
- 20 (122) 5-methyl etodesnitazene (2-(2-(4-ethoxybenzyl)-5-methyl-1H-
21 benzimidazol-1-yl)-N,N-diethylethan-1-amine);
- 22 (123) N-Desethyl protonitazene (N-ethyl-2-(5-nitro-2-(4-
23 propoxybenzyl)-1H-benzimidazol-1-yl)ethan-1-amine);
- 24 (124) N-desethyl etonitazene (2-(2-(4-Ethoxybenzyl)-5-nitro-1H-
25 benzimidazol-1-yl)-N-ethylethan-1-amine);
- 26 (125) N,N-Dimethylamino etonitazene (2-(2-(4-Ethoxybenzyl)-5-
27 nitro-1H-benzimidazol-1-yl)-N,N-dimethylethan-1-amine);
- 28 (126) N-desethyl isotonitazene (N-ethyl-2-(2-(4-isopropoxybenzyl)-5-
29 nitro-1H-benzimidazol-1-yl)ethan-1-amine);
- 30 (127) Metonitazepyne (other names: 2-(4-methoxybenzyl)-5-nitro-1-(2-
31 (pyrrolidin-1-yl)ethyl)-1H-benzimidazole and N-pyrrolidino metonitazene);

1 (128) Protonitazepyne (other names: 5-nitro-2-(4-
2 propoxybenzyl)-1-(2-(pyrrolidin-1-yl)ethyl)-1H-benzimidazole and N-
3 pyrrolidino protonitazene); and

4 (129) 7-Hydroxymitragynine.

5 (b) Any of the following opium derivatives, their salts, isomers,
6 and salts of isomers, unless specifically excepted, whenever the
7 existence of such salts, isomers, and salts of isomers is possible within
8 the specific chemical designation:

- 9 (1) Acetorphine;
10 (2) Acetyldihydrocodeine;
11 (3) Benzylmorphine;
12 (4) Codeine methylbromide;
13 (5) Codeine-N-Oxide;
14 (6) Cyprenorphine;
15 (7) Desomorphine;
16 (8) Dihydromorphine;
17 (9) Drotebanol;
18 (10) Etorphine, except hydrochloride salt;
19 (11) Heroin;
20 (12) Hydromorphenol;
21 (13) Methyldesorphine;
22 (14) Methyldihydromorphine;
23 (15) Morphine methylbromide;
24 (16) Morphine methylsulfonate;
25 (17) Morphine-N-Oxide;
26 (18) Myrophine;
27 (19) Nicocodeine;
28 (20) Nicomorphine;
29 (21) Normorphine;
30 (22) Pholcodine; and
31 (23) Thebacon.

1 (c) Any material, compound, mixture, or preparation which contains
2 any quantity of the following hallucinogenic substances, their salts,
3 isomers, and salts of isomers, unless specifically excepted, whenever the
4 existence of such salts, isomers, and salts of isomers is possible within
5 the specific chemical designation, and, for purposes of this subdivision
6 only, isomer shall include the optical, position, and geometric isomers:

7 (1) Bufotenine. Trade and other names shall include, but are not
8 limited to: 3-(beta-Dimethylaminoethyl)-5-hydroxyindole; 3-(2-
9 dimethylaminoethyl)-5-indolol; N,N-dimethylserotonin; 5-hydroxy-N,N-
10 dimethyltryptamine; and mappine;

11 (2) 4-bromo-2,5-dimethoxyamphetamine. Trade and other names shall
12 include, but are not limited to: 4-bromo-2,5-dimethoxy-alpha-
13 methylphenethylamine; and 4-bromo-2,5-DMA;

14 (3) 4-methoxyamphetamine. Trade and other names shall include, but
15 are not limited to: 4-methoxy-alpha-methylphenethylamine; and
16 paramethoxyamphetamine, PMA;

17 (4) 4-methyl-2,5-dimethoxyamphetamine. Trade and other names shall
18 include, but are not limited to: 4-methyl-2,5-dimethoxy-alpha-
19 methylphenethylamine; DOM; and STP;

20 (5) Para-methoxymethamphetamine. Trade and other names shall
21 include, but are not limited to: 1-(4-Methoxyphenyl)-N-methylpropan-2-
22 amine, PMMA, and 4-MMA;

23 (6) Ibogaine. Trade and other names shall include, but are not
24 limited to: 7-Ethyl-6,6beta,7,8,9,10,12,13-octahydro-2-methoxy-6,9-
25 methano-5H-pyrido (1',2':1,2) azepino (5,4-b) indole; and Tabernanthe
26 iboga;

27 (7) Lysergic acid diethylamide;

28 (8) Marijuana;

29 (9) Mescaline;

30 (10) Methoxetamine (MXE);

31 (11) Peyote. Peyote means all parts of the plant presently

1 classified botanically as *Lophophora williamsii* Lemaire, whether growing
2 or not, the seeds thereof, any extract from any part of such plant, and
3 every compound, manufacture, salts, derivative, mixture, or preparation
4 of such plant or its seeds or extracts;

5 (12) Psilocybin. Psilocybin does not include any pharmaceutical
6 composition of crystalline polymorph psilocybin approved by the federal
7 Food and Drug Administration;

8 (13) Psilocin ~~Psilocyn~~;

9 (14) Tetrahydrocannabinols, including, but not limited to, synthetic
10 equivalents of the substances contained in the plant or in the resinous
11 extractives of cannabis, sp. or synthetic substances, derivatives, and
12 their isomers with similar chemical structure and pharmacological
13 activity such as the following: Delta 1 cis or trans tetrahydrocannabinol
14 and their optical isomers, excluding dronabinol in a drug product
15 approved by the federal Food and Drug Administration; Delta 6 cis or
16 trans tetrahydrocannabinol and their optical isomers; and Delta 3,4 cis
17 or trans tetrahydrocannabinol and its optical isomers. Since nomenclature
18 of these substances is not internationally standardized, compounds of
19 these structures shall be included regardless of the numerical
20 designation of atomic positions covered. Tetrahydrocannabinols does not
21 include cannabidiol contained in a drug product approved by the federal
22 Food and Drug Administration;

23 (15) N-ethyl-3-piperidyl benzilate;

24 (16) N-methyl-3-piperidyl benzilate;

25 (17) Thiophene analog of phencyclidine. Trade and other names shall
26 include, but are not limited to: 1-(1-(2-thienyl)-cyclohexyl)-piperidine;
27 2-thienyl analog of phencyclidine; TCP; and TCP;

28 (18) Hashish or concentrated cannabis;

29 (19) Parahexyl. Trade and other names shall include, but are not
30 limited to: 3-Hexyl-1-hydroxy-7,8,9,10-tetrahydro-6,6,9-trimethyl-6H-
31 dibenzo(b,d)pyran; and Synhexyl;

1 (20) Ethylamine analog of phencyclidine. Trade and other names shall
2 include, but are not limited to: N-ethyl-1-phenylcyclohexylamine; (1-
3 phenylcyclohexyl)ethylamine; N-(1-phenylcyclohexyl)ethylamine;
4 cyclohexamine; and PCE;

5 (21) Pyrrolidine analog of phencyclidine. Trade and other names
6 shall include, but are not limited to: 1-(1-phenylcyclohexyl)-
7 pyrrolidine; PCPy; and PHP;

8 (22) Alpha-ethyltryptamine. Some trade or other names: etryptamine;
9 Monase; alpha-ethyl-1H-indole-3-ethanamine; 3-(2-aminobutyl) indole;
10 alpha-ET; and AET;

11 (23) 2,5-dimethoxy-4-ethylamphet-amine; and DOET;

12 (24) 1-(1-(2-thienyl)cyclohexyl)pyrrolidine; and TCPy;

13 (25) Alpha-methyltryptamine, which is also known as AMT;

14 (26) Salvia divinorum or Salvinorin A. Salvia divinorum or
15 Salvinorin A includes all parts of the plant presently classified
16 botanically as Salvia divinorum, whether growing or not, the seeds
17 thereof, any extract from any part of such plant, and every compound,
18 manufacture, derivative, mixture, or preparation of such plant, its
19 seeds, or its extracts, including salts, isomers, and salts of isomers
20 whenever the existence of such salts, isomers, and salts of isomers is
21 possible within the specific chemical designation;

22 (27) 1-(1,3-benzodioxol-5-yl)-2-(ethylamino)butan-1-one (other
23 names: eutylone or bk-EBDB);

24 (28) Any material, compound, mixture, or preparation containing any
25 quantity of synthetically produced cannabinoids as listed in subdivisions
26 (A) through (L) of this subdivision, including their salts, isomers,
27 salts of isomers, and nitrogen, oxygen, or sulfur-heterocyclic analogs,
28 unless specifically excepted elsewhere in this section. Since
29 nomenclature of these synthetically produced cannabinoids is not
30 internationally standardized and may continually evolve, these structures
31 or compounds of these structures shall be included under this

1 subdivision, regardless of their specific numerical designation of atomic
2 positions covered, so long as it can be determined through a recognized
3 method of scientific testing or analysis that the substance contains
4 properties that fit within one or more of the following categories:

5 (A) Tetrahydrocannabinols: Meaning tetrahydrocannabinols naturally
6 contained in a plant of the genus cannabis (cannabis plant), as well as
7 synthetic equivalents of the substances contained in the plant, or in the
8 resinous extractives of cannabis, sp. and/or synthetic substances,
9 derivatives, and their isomers with similar chemical structure and
10 pharmacological activity such as the following: Delta 1 cis or trans
11 tetrahydrocannabinol, and their optical isomers; Delta 6 cis or trans
12 tetrahydrocannabinol, and their optical isomers; Delta 3,4 cis or trans
13 tetrahydrocannabinol, and its optical isomers. This subdivision does not
14 include cannabidiol contained in a drug product approved by the federal
15 Food and Drug Administration;

16 (B) Naphthoylindoles: Any compound containing a 3-(1-
17 naphthoyl)indole structure with substitution at the nitrogen atom of the
18 indole ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
19 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
20 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
21 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
22 tetrahydropyranylmethyl group, whether or not further substituted in or
23 on any of the listed ring systems to any extent;

24 (C) Naphthylmethylindoles: Any compound containing a 1 H-indol-3-
25 yl-(1-naphthyl)methane structure with substitution at the nitrogen atom
26 of the indole ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
27 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
28 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
29 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
30 tetrahydropyranylmethyl group, whether or not further substituted in or
31 on any of the listed ring systems to any extent;

1 (D) Naphthoylpyrroles: Any compound containing a 3-(1-
2 naphthoyl)pyrrole structure with substitution at the nitrogen atom of the
3 pyrrole ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
4 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
5 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
6 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
7 tetrahydropyranylmethyl group, whether or not further substituted in or
8 on any of the listed ring systems to any extent;

9 (E) Naphthylideneindenes: Any compound containing a
10 naphthylideneindene structure with substitution at the 3-position of the
11 indene ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
12 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
13 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
14 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
15 tetrahydropyranylmethyl group, whether or not further substituted in or
16 on any of the listed ring systems to any extent;

17 (F) Phenylacetylindoles: Any compound containing a 3-
18 phenylacetylindole structure with substitution at the nitrogen atom of
19 the indole ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
20 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
21 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
22 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
23 tetrahydropyranylmethyl group, whether or not further substituted in or
24 on any of the listed ring systems to any extent;

25 (G) Cyclohexylphenols: Any compound containing a 2-(3-
26 hydroxycyclohexyl)phenol structure with substitution at the 5-position of
27 the phenolic ring by an alkyl, haloalkyl, alkenyl, halobenzyl, benzyl,
28 cycloalkylmethyl, cycloalkylethyl, 2-(4-morpholinyl)ethyl group,
29 cyanoalkyl, 1-(N-methyl-2-piperidinyl)methyl, 1-(N-methyl-2-
30 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
31 tetrahydropyranylmethyl group, whether or not substituted in or on any of

1 the listed ring systems to any extent;

2 (H) Benzoylindoles: Any compound containing a 3-(benzoyl)indole
3 structure with substitution at the nitrogen atom of the indole ring by an
4 alkyl, haloalkyl, alkenyl, halobenzyl, benzyl, cycloalkylmethyl,
5 cycloalkylethyl, 2-(4-morpholinyl)ethyl group, cyanoalkyl, 1-(N-methyl-2-
6 piperidinyl)methyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
7 morpholinyl)methyl, or tetrahydropyranylmethyl group, whether or not
8 further substituted in or on any of the listed ring systems to any
9 extent;

10 (I) Adamantoylindoles: Any compound containing a 3-adamantoylindole
11 structure with substitution at the nitrogen atom of the indole ring by an
12 alkyl, haloalkyl, cyanoalkyl, alkenyl, halobenzyl, benzyl,
13 cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl,
14 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-pyrrolidinyl)methyl, 1-(N-methyl-3-
15 morpholinyl)methyl, or tetrahydropyranylmethyl group, whether or not
16 further substituted in or on any of the listed ring systems to any
17 extent;

18 (J) Tetramethylcyclopropanoylindoles: Any compound containing a 3-
19 tetramethylcyclopropanoylindole structure with substitution at the
20 nitrogen atom of the indole ring by an alkyl, haloalkyl, cyanoalkyl,
21 alkenyl, halobenzyl, benzyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-
22 methyl-2-piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
23 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
24 tetrahydropyranylmethyl group, whether or not further substituted in or
25 on any of the listed ring systems to any extent;

26 (K) Indole carboxamides: Any compound containing a 1-indole-3-
27 carboxamide structure with substitution at the nitrogen atom of the
28 indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, halobenzyl,
29 benzyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-
30 piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
31 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or

1 tetrahydropyranylmethyl group, substitution at the carboxamide group by
2 an alkyl, methoxy, benzyl, propionaldehyde, adamantyl, 1-naphthyl,
3 phenyl, aminooxoalkyl group, or quinolinyl group, whether or not further
4 substituted in or on any of the listed ring systems to any extent or to
5 the adamantyl, 1-maphthyl, phenyl, aminooxoalkyl, benzyl, or
6 propionaldehyde groups to any extent;

7 (L) Indole carboxylates: Any compound containing a 1-indole-3-
8 carboxylate structure with substitution at the nitrogen atom of the
9 indole ring by an alkyl, haloalkyl, cyanoalkyl, alkenyl, halobenzyl,
10 benzyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-
11 piperidinyl)methyl, 2-(4-morpholinyl)ethyl, 1-(N-methyl-2-
12 pyrrolidinyl)methyl, 1-(N-methyl-3-morpholinyl)methyl, or
13 tetrahydropyranylmethyl group, substitution at the carboxylate group by
14 an alkyl, methoxy, benzyl, propionaldehyde, adamantyl, 1-naphthyl,
15 phenyl, aminooxoalkyl group, or quinolinyl group, whether or not further
16 substituted in or on any of the listed ring systems to any extent or to
17 the adamantyl, 1-maphthyl, phenyl, aminooxoalkyl, benzyl, or
18 propionaldehyde groups to any extent; and

19 (M) Any nonnaturally occurring substance, chemical compound,
20 mixture, or preparation, not specifically listed elsewhere in these
21 schedules and which is not approved for human consumption by the federal
22 Food and Drug Administration, containing or constituting a cannabinoid
23 receptor agonist as defined in section 28-401;

24 (29) Zipeprol 1-methoxy-3-[4-(2-methoxy-2-phenylethyl)piperazin-1-
25 yl]-1-phenylpropan-2-ol, including its isomers, esters, ethers, salts,
26 and salts of isomers, esters, and ethers, whenever the existence of such
27 isomers, esters, ethers, and salts is possible within the specific
28 chemical designation;

29 (30) Any material, compound, mixture, or preparation containing any
30 quantity of a substituted phenethylamine as listed in subdivisions (A)
31 through (C) of this subdivision, unless specifically excepted, listed in

1 another schedule, or specifically named in this schedule, that is
2 structurally derived from phenylethan-2-amine by substitution on the
3 phenyl ring with a fused methylenedioxy ring, fused furan ring, or a
4 fused tetrahydrofuran ring; by substitution with two alkoxy groups; by
5 substitution with one alkoxy and either one fused furan, tetrahydrofuran,
6 or tetrahydropyran ring system; or by substitution with two fused ring
7 systems from any combination of the furan, tetrahydrofuran, or
8 tetrahydropyran ring systems, whether or not the compound is further
9 modified in any of the following ways:

10 (A) Substitution of the phenyl ring by any halo, hydroxyl, alkyl,
11 trifluoromethyl, alkoxy, or alkylthio groups; (B) substitution at the 2-
12 position by any alkyl groups; or (C) substitution at the 2-amino nitrogen
13 atom with alkyl, dialkyl, benzyl, hydroxybenzyl, or methoxybenzyl groups,
14 and including, but not limited to:

15 (i) 2-(4-Chloro-2,5-dimethoxyphenyl)ethanamine, which is also known
16 as 2C-C or 2,5-Dimethoxy-4-chlorophenethylamine;

17 (ii) 2-(2,5-Dimethoxy-4-methylphenyl)ethanamine, which is also known
18 as 2C-D or 2,5-Dimethoxy-4-methylphenethylamine;

19 (iii) 2-(2,5-Dimethoxy-4-ethylphenyl)ethanamine, which is also known
20 as 2C-E or 2,5-Dimethoxy-4-ethylphenethylamine;

21 (iv) 2-(2,5-Dimethoxyphenyl)ethanamine, which is also known as 2C-H
22 or 2,5-Dimethoxyphenethylamine;

23 (v) 2-(4-Iodo-2,5-dimethoxyphenyl)ethanamine, which is also known as
24 2C-I or 2,5-Dimethoxy-4-iodophenethylamine;

25 (vi) 2-(2,5-Dimethoxy-4-nitro-phenyl)ethanamine, which is also known
26 as 2C-N or 2,5-Dimethoxy-4-nitrophenethylamine;

27 (vii) 2-(2,5-Dimethoxy-4-(n)-propylphenyl)ethanamine, which is also
28 known as 2C-P or 2,5-Dimethoxy-4-propylphenethylamine;

29 (viii) 2-[4-(Ethylthio)-2,5-dimethoxyphenyl]ethanamine, which is
30 also known as 2C-T-2 or 2,5-Dimethoxy-4-ethylthiophenethylamine;

31 (ix) 2-[4-(Isopropylthio)-2,5-dimethoxyphenyl]ethanamine, which is

- 1 also known as 2C-T-4 or 2,5-Dimethoxy-4-isopropylthiophenethylamine;
- 2 (x) 2-(4-bromo-2,5-dimethoxyphenyl)ethanamine, which is also known
- 3 as 2C-B or 2,5-Dimethoxy-4-bromophenethylamine;
- 4 (xi) 2-(2,5-dimethoxy-4-(methylthio)phenyl)ethanamine, which is also
- 5 known as 2C-T or 4-methylthio-2,5-dimethoxyphenethylamine;
- 6 (xii) 1-(2,5-dimethoxy-4-iodophenyl)-propan-2-amine, which is also
- 7 known as DOI or 2,5-Dimethoxy-4-iodoamphetamine;
- 8 (xiii) 1-(4-Bromo-2,5-dimethoxyphenyl)-2-aminopropane, which is also
- 9 known as DOB or 2,5-Dimethoxy-4-bromoamphetamine;
- 10 (xiv) 1-(4-chloro-2,5-dimethoxy-phenyl)propan-2-amine, which is also
- 11 known as DOC or 2,5-Dimethoxy-4-chloroamphetamine;
- 12 (xv) 2-(4-bromo-2,5-dimethoxyphenyl)-N-[(2-
- 13 methoxyphenyl)methyl]ethanamine, which is also known as 2C-B-NBOMe; 25B-
- 14 NBOMe or 2,5-Dimethoxy-4-bromo-N-(2-methoxybenzyl)phenethylamine;
- 15 (xvi) 2-(4-iodo-2,5-dimethoxyphenyl)-N-[(2-
- 16 methoxyphenyl)methyl]ethanamine, which is also known as 2C-I-NBOMe; 25I-
- 17 NBOMe or 2,5-Dimethoxy-4-iodo-N-(2-methoxybenzyl)phenethylamine;
- 18 (xvii) N-(2-Methoxybenzyl)-2-(3,4,5-trimethoxyphenyl)ethanamine,
- 19 which is also known as Mescaline-NBOMe or 3,4,5-trimethoxy-N-(2-
- 20 methoxybenzyl)phenethylamine;
- 21 (xviii) 2-(4-chloro-2,5-dimethoxyphenyl)-N-[(2-
- 22 methoxyphenyl)methyl]ethanamine, which is also known as 2C-C-NBOMe; or
- 23 25C-NBOMe or 2,5-Dimethoxy-4-chloro-N-(2-methoxybenzyl)phenethylamine;
- 24 (xix) 2-(7-Bromo-5-methoxy-2,3-dihydro-1-benzofuran-4-yl)ethanamine,
- 25 which is also known as 2CB-5-hemiFLY;
- 26 (xx) 2-(8-bromo-2,3,6,7-tetrahydrofuro [2,3-f][1]benzofuran-4-
- 27 yl)ethanamine, which is also known as 2C-B-FLY;
- 28 (xxi) 2-(10-Bromo-2,3,4,7,8,9-hexahydropyrano[2,3-g]chromen-5-
- 29 yl)ethanamine, which is also known as 2C-B-butterFLY;
- 30 (xxii) N-(2-Methoxybenzyl)-1-(8-bromo-2,3,6,7- tetrahydrobenzo[1,2-
- 31 b:4,5-b']difuran-4-yl)-2-aminoethane, which is also known as 2C-B-FLY-

1 NBOMe;

2 (xxiii) 1-(4-Bromofuro[2,3-f][1]benzofuran-8-yl)propan-2-amine,
3 which is also known as bromo-benzodifuranylisopropylamine or bromo-
4 dragonFLY;

5 (xxiv) N-(2-Hydroxybenzyl)-4-iodo-2,5-dimethoxyphenethylamine, which
6 is also known as 2C-INBOH or 25I-NBOH;

7 (xxv) 5-(2-Aminopropyl)benzofuran, which is also known as 5-APB;

8 (xxvi) 6-(2-Aminopropyl)benzofuran, which is also known as 6-APB;

9 (xxvii) 5-(2-Aminopropyl)-2,3-dihydrobenzofuran, which is also known
10 as 5-APDB;

11 (xxviii) 6-(2-Aminopropyl)-2,3-dihydrobenzofuran, which is also
12 known as 6-APDB;

13 (xxix) 2,5-dimethoxy-amphetamine, which is also known as 2,5-
14 dimethoxy-a-methylphenethylamine ~~2,—5-dimethoxy-a-methylphenethylamine;~~
15 2,5-DMA ~~2,—5-DMA;~~

16 (xxx) 2,5-dimethoxy-4-ethylamphetamine, which is also known as DOET;

17 (xxxi) 2,5-dimethoxy-4-(n)-propylthiophenethylamine, which is also
18 known as 2C-T-7;

19 (xxxii) 5-methoxy-3,4-methylenedioxy-amphetamine;

20 (xxxiii) 4-methyl-2,5-dimethoxy-amphetamine, which is also known as
21 4-methyl-2,5-dimethoxy-amethylphenethylamine; DOM and STP;

22 (xxxiv) 3,4-methylenedioxy amphetamine, which is also known as MDA;

23 (xxxv) 3,4-methylenedioxymethamphetamine, which is also known as
24 MDMA;

25 (xxxvi) 3,4-methylenedioxy-N-ethylamphetamine, which is also known
26 as N-ethyl-alpha-methyl-3,4(methylenedioxy)phenethylamine, MDE, MDEA;

27 (xxxvii) 3,4,5-trimethoxy amphetamine; and

28 (xxxviii) n-hydroxy-3, 4-Methylenedioxy-N-Hydroxyamphetamine, which
29 is also known as N-hydroxyMDA;

30 (31) Any material, compound, mixture, or preparation containing any
31 quantity of a substituted tryptamine unless specifically excepted, listed

1 in another schedule, or specifically named in this schedule, that is
2 structurally derived from 2-(1H-indol-3-yl)ethanamine, which is also
3 known as tryptamine, by mono- or di-substitution of the amine nitrogen
4 with alkyl or alkenyl groups or by inclusion of the amino nitrogen atom
5 in a cyclic structure whether or not the compound is further substituted
6 at the alpha position with an alkyl group or whether or not further
7 substituted on the indole ring to any extent with any alkyl, alkoxy,
8 halo, hydroxyl, or acetoxy groups, and including, but not limited to:

9 (A) 5-methoxy-N,N-diallyltryptamine, which is also known as 5-MeO-
10 DALT;

11 (B) 4-acetoxy-N,N-dimethyltryptamine, which is also known as 4-AcO-
12 DMT or OAcetylpsilocin;

13 (C) 4-hydroxy-N-methyl-N-ethyltryptamine, which is also known as 4-
14 HO-MET;

15 (D) 4-hydroxy-N,N-diisopropyltryptamine, which is also known as 4-
16 HO-DIPT;

17 (E) 5-methoxy-N-methyl-N-isopropyltryptamine, which is also known as
18 5-MeOMiPT;

19 (F) 5-Methoxy-N,N-Dimethyltryptamine, which is also known as 5-MeO-
20 DMT;

21 (G) 5-methoxy-N,N-diisopropyltryptamine, which is also known as 5-
22 MeO-DiPT;

23 (H) Diethyltryptamine, which is also known as N,N-Diethyltryptamine,
24 DET; and

25 (I) Dimethyltryptamine, which is also known as DMT; and

26 (32)(A) Any substance containing any quantity of the following
27 materials, compounds, mixtures, or structures:

28 (i) 3,4-methylenedioxymethcathinone, or bk-MDMA, or methyldone;

29 (ii) 3,4-methylenedioxypyrovalerone, or MDPV;

30 (iii) 4-methylmethcathinone, or 4-MMC, or mephedrone;

31 (iv) 4-methoxymethcathinone, or bk-PMMA, or PMMC, or methedrone;

- 1 (v) Fluoromethcathinone, or FMC;
2 (vi) Naphthylpyrovalerone, or naphyrone; or
3 (vii) Beta-keto-N-methylbenzodioxolylpropylamine or bk-MBDB or
4 butylone; or

5 (B) Unless listed in another schedule, any substance which contains
6 any quantity of any material, compound, mixture, or structure, other than
7 bupropion, that is structurally derived by any means from 2-
8 aminopropan-1-one by substitution at the 1-position with either phenyl,
9 naphthyl, or thiophene ring systems, whether or not the compound is
10 further modified in any of the following ways:

11 (i) Substitution in the ring system to any extent with alkyl,
12 alkoxy, alkylenedioxy, haloalkyl, hydroxyl, or halide substituents,
13 whether or not further substituted in the ring system by one or more
14 other univalent substituents;

15 (ii) Substitution at the 3-position with an acyclic alkyl
16 substituent; or

17 (iii) Substitution at the 2-amino nitrogen atom with alkyl or
18 dialkyl groups, or by inclusion of the 2-amino nitrogen atom in a cyclic
19 structure.

20 (d) Unless specifically excepted or unless listed in another
21 schedule, any material, compound, mixture, or preparation which contains
22 any quantity of the following substances having a depressant effect on
23 the central nervous system, including its salts, isomers, and salts of
24 isomers whenever the existence of such salts, isomers, and salts of
25 isomers is possible within the specific chemical designation:

26 (1) Amineptine 7-[(10,11-dihydro-5H-dibenzo[a,d]-cyclohepten-5-
27 yl)amino]heptanoic acid, including its salts, isomers, and salts of
28 isomers;

29 (2) Mecloqualone;

30 (3) Methaqualone; and

31 (4) Gamma-Hydroxybutyric Acid. Some other names include: GHB; Gamma-

1 hydroxybutyrate; 4-Hydroxybutyrate; 4-Hydroxybutanoic Acid; Sodium
2 Oxybate; and Sodium Oxybutyrate;

3 (5) Clonazepam (6-(2-chlorophenyl)-1-methyl-8-nitro-4H-benzo[f]
4 [1,2,4]triazolo[4,3-a][1,4]diazepine); -

5 (6) Diclazepam (7-chloro-5-(2-chlorophenyl)-1,3-dihydro-1-
6 methyl-2H-1,4-benzodiazepin-2-one);

7 (7) Etizolam (4-(2-chlorophenyl)-2-ethyl-9-methyl-6H-thieno[3,2-f]
8 [1,2,4]triazolo[4,3-a][1,4]diazepine);

9 (8) Flualprazolam (8-chloro-6-(2-fluorophenyl)-1-methyl-4H-benzo[f]
10 [1,2,4]triazolo[4,3-a][1,4]diazepine); and

11 (9) Flubromazolam (8-bromo-6-(2-fluorophenyl)-1-methyl-4H-benzo[f]
12 [1,2,4]triazolo[4,3-a][1,4]diazepine).

13 (e) Unless specifically excepted or unless listed in another
14 schedule, any material, compound, mixture, or preparation which contains
15 any quantity of the following substances having a stimulant effect on the
16 central nervous system, including its salts, isomers, and salts of
17 isomers:

18 (1) Fenethylamine;

19 (2) N-ethylamphetamine;

20 (3) Amphetamine; amphetamine; 2-amino-5-phenyl-2-oxazoline; or 4,5-
21 dihydro-5-phenyl-2-oxazoline;

22 (4) Cathinone; 2-amino-1-phenyl-1-propanone; alpha-
23 aminopropiophenone; 2-aminopropiophenone; and norephedrine;

24 (5) Methcathinone, its salts, optical isomers, and salts of optical
25 isomers. Some other names: 2-(methylamino)-propionophenone; alpha-
26 (methylamino)propionophenone; 2-(methylamino)-1-phenylpropan-1-one; alpha-
27 N-methylaminopropiophenone; methylcathinone; monomethylpropion;
28 ephedrine; N-methylcathinone; AL-464; AL-422; AL-463; UR1432; and 4-MEC;

29 (6) (+/-)-cis-4-methylaminorex; and (+/-)-cis-4,5-dihydro-4-methyl-5-
30 phenyl-2-oxazoline;

31 (7) N,N-dimethylamphetamine; N,N-alpha-trimethyl-benzeneethanamine;

- 1 and N,N-alpha-trimethylphenethylamine;
- 2 (8) Benzyloperazine, 1-benzyloperazine;
- 3 (9) 4,4'-dimethylaminorex (other names: 4,4'-DMAR, 4,5-dihydro-4-
- 4 methyl-5-(4-methylphenyl)-2-oxazolamine);
- 5 (10) N-phenyl-N' -(3-(1- phenylpropan-2-yl)-1,2,3-oxadiazol-3-
- 6 ium-5-yl)carbamimidate), including its salts, isomers, and salts of
- 7 isomers;
- 8 (11) Mesocarb (N-phenyl-N'-(3-(1-phenylpropan-2-yl)-1,2,3-
- 9 oxadiazol-3-ium-5-yl)carbamimidate); and
- 10 (12) Methiopropamine (N-methyl-1-(thiophen-2-yl)propan-2-amine);
- 11 (13) Ethylphenidate (ethyl 2-phenyl-2-(piperidin-2-yl)acetate); and
- 12 (14) Dipentylone (1-(1,3-benzodioxol-5-yl)-2-
- 13 (dimethylamino)pentan-1-one; N,N-dimethylpentylone).

14 (f) Any controlled substance analogue to the extent intended for

15 human consumption.

16 Schedule II

17 (a) Any of the following substances except those narcotic drugs

18 listed in other schedules whether produced directly or indirectly by

19 extraction from substances of vegetable origin, independently by means of

20 chemical synthesis, or by combination of extraction and chemical

21 synthesis:

22 (1) Opium and opiate, and any salt, compound, derivative, or

23 preparation of opium or opiate, excluding apomorphine, buprenorphine,

24 thebaine-derived butorphanol, dextrorphan, nalbuphine, nalmeferine,

25 naloxone, and naltrexone and their salts, but including the following:

- 26 (A) Raw opium;
- 27 (B) Opium extracts;
- 28 (C) Opium fluid;
- 29 (D) Powdered opium;
- 30 (E) Granulated opium;
- 31 (F) Tincture of opium;

- 1 (G) Codeine;
- 2 (H) Ethylmorphine;
- 3 (I) Etorphine hydrochloride;
- 4 (J) Hydrocodone;
- 5 (K) Hydromorphone;
- 6 (L) Metopon;
- 7 (M) Morphine;
- 8 (N) Oxycodone;
- 9 (O) Oxymorphone;
- 10 (P) Oripavine;
- 11 (Q) Thebaine; and
- 12 (R) Dihydroetorphine;
- 13 (2) Any salt, compound, derivative, or preparation thereof which is
- 14 chemically equivalent to or identical with any of the substances referred
- 15 to in subdivision (1) of this subdivision, except that these substances
- 16 shall not include the isoquinoline alkaloids of opium;
- 17 (3) Opium poppy and poppy straw;
- 18 (4) Coca leaves and any salt, compound, derivative, or preparation
- 19 of coca leaves, and any salt, compound, derivative, or preparation
- 20 thereof which is chemically equivalent to or identical with any of these
- 21 substances, including cocaine or ecgonine and its salts, optical isomers,
- 22 and salts of optical isomers, except that the substances shall not
- 23 include decocainized coca leaves or extractions which do not contain
- 24 cocaine or ecgonine; and
- 25 (5) Concentrate of poppy straw, the crude extract of poppy straw in
- 26 either liquid, solid, or powder form which contains the phenanthrene
- 27 alkaloids of the opium poppy.
- 28 (b) Unless specifically excepted or unless in another schedule any
- 29 of the following opiates, including their isomers, esters, ethers, salts,
- 30 and salts of their isomers, esters, and ethers whenever the existence of
- 31 such isomers, esters, ethers, and salts is possible within the specific

- 1 chemical designation, dextrorphan excepted:
- 2 (1) Alphaprodine;
- 3 (2) Anileridine;
- 4 (3) Bezitramide;
- 5 (4) Diphenoxylate;
- 6 (5) Fentanyl;
- 7 (6) Isomethadone;
- 8 (7) Levomethorphan;
- 9 (8) Levorphanol;
- 10 (9) Metazocine;
- 11 (10) Methadone;
- 12 (11) Methadone-intermediate, 4-cyano-2-dimethylamino-4,4-diphenyl
- 13 butane;
- 14 (12) Moramide-intermediate, 2-methyl-3-morpholino-1,1-
- 15 diphenylpropane-carboxylic acid;
- 16 (13) Norfentanyl (N-phenyl-N-piperidin-4-yl) propionamide;
- 17 (14) Oliceridine;
- 18 (15) Pethidine or meperidine;
- 19 (16) Pethidine-Intermediate-A, 4-cyano-1-methyl-4-phenylpiperidine;
- 20 (17) Pethidine-Intermediate-B, ethyl-4-phenylpiperidine-4-
- 21 carboxylate;
- 22 (18) Pethidine-Intermediate-C, 1-methyl-4-phenylpiperidine-4-
- 23 carboxylic acid;
- 24 (19) Phenazocine;
- 25 (20) Piminodine;
- 26 (21) Racemethorphan;
- 27 (22) Racemorphan;
- 28 (23) Dihydrocodeine;
- 29 (24) Bulk Propoxyphene in nondosage forms;
- 30 (25) Sufentanil;
- 31 (26) Alfentanil;

1 (27) Levo-alphaacetylmethadol which is also known as levo-alpha-
2 acetylmethadol, levomethadyl acetate, and LAAM;

3 (28) Carfentanil;

4 (29) Remifentanil;

5 (30) Tapentadol; and

6 (31) Thiafentanil.

7 (c) Any material, compound, mixture, or preparation which contains
8 any quantity of the following substances having a potential for abuse
9 associated with a stimulant effect on the central nervous system:

10 (1) Amphetamine, its salts, optical isomers, and salts of its
11 optical isomers;

12 (2) Phenmetrazine and its salts;

13 (3) Methamphetamine, its salts, isomers, and salts of its isomers;

14 (4) Methylphenidate; and

15 (5) Lisdexamfetamine, its salts, isomers, and salts of its isomers.

16 (d) Any material, compound, mixture, or preparation which contains
17 any quantity of the following substances having a potential for abuse
18 associated with a depressant effect on the central nervous system,
19 including their salts, isomers, and salts of isomers whenever the
20 existence of such salts, isomers, and salts of isomers is possible within
21 the specific chemical designations:

22 (1) Amobarbital;

23 (2) Secobarbital;

24 (3) Pentobarbital;

25 (4) Phencyclidine; and

26 (5) Glutethimide.

27 (e) Hallucinogenic substances known as:

28 (1) Nabilone. Another name for nabilone: (+/-)-trans-3-(1,1-
29 dimethylheptyl)- 6,6a,7,8,10,10a-Hexahydro-1-hydroxy-6,6-dimethyl-9H-
30 dibenzo(b,d)pyran-9-one; and

31 (2) Dronabinol in an oral solution in a drug product approved by the

1 federal Food and Drug Administration.

2 (f) Unless specifically excepted or unless listed in another
3 schedule, any material, compound, mixture, or preparation which contains
4 any quantity of the following substances:

5 (1) Immediate precursor to amphetamine and methamphetamine:
6 Phenylacetone. Trade and other names shall include, but are not limited
7 to: Phenyl-2-propanone; P2P; benzyl methyl ketone; and methyl benzyl
8 ketone;

9 (2) Immediate precursors to phencyclidine, PCP:

10 (A) 1-phenylcyclohexylamine; or

11 (B) 1-piperidinocyclohexanecarbonitrile, PCC;

12 (3) Immediate precursor to fentanyl; 4-anilino-N-phenethylpiperidine
13 (ANPP); or

14 (4) Tianeptine, its salts, isomers, and salts of isomers whenever
15 the existence of such salts, isomers, and salts of isomers is possible
16 within the specific chemical designation.

17 Schedule III

18 (a) Any material, compound, mixture, or preparation which contains
19 any quantity of the following substances having a potential for abuse
20 associated with a stimulant effect on the central nervous system,
21 including their salts, isomers, whether optical, position, or geometric,
22 and salts of such isomers whenever the existence of such salts, isomers,
23 and salts of isomers is possible within the specific chemical
24 designation:

25 (1) Benzphetamine;

26 (2) Chlorphentermine;

27 (3) Clortermine; and

28 (4) Phendimetrazine.

29 (b) Any material, compound, mixture, or preparation which contains
30 any quantity of the following substances having a potential for abuse
31 associated with a depressant effect on the central nervous system:

1 (1) Any substance which contains any quantity of a derivative of
2 barbituric acid or any salt of a derivative of barbituric acid, except
3 those substances which are specifically listed in other schedules of this
4 section;

5 (2) Aprobarbital;

6 (3) Butabarbital;

7 (4) Butalbital;

8 (5) Butethal;

9 (6) Butobarbital;

10 (7) Chlorhexadol;

11 (8) Embutramide;

12 (9) Lysergic acid;

13 (10) Lysergic acid amide;

14 (11) Methypylon;

15 (12) Perampanel;

16 (13) Secbutabarbital;

17 (14) Sulfondiethylmethane;

18 (15) Sulfonethylmethane;

19 (16) Sulfonmethane;

20 (17) Nalorphine;

21 (18) Talbutal;

22 (19) Thiamylal;

23 (20) Thiopental;

24 (21) Vinbarbital;

25 (22) Any compound, mixture, or preparation containing amobarbital,
26 secobarbital, pentobarbital, or any salt thereof and one or more other
27 active medicinal ingredients which are not listed in any schedule;

28 (23) Any suppository dosage form containing amobarbital,
29 secobarbital, pentobarbital, or any salt of any of these drugs and
30 approved by the federal Food and Drug Administration for marketing only
31 as a suppository;

1 (24) Any drug product containing gamma-hydroxybutyric acid,
2 including its salts, isomers, and salts of isomers, for which an
3 application is approved under section 505 of the Federal Food, Drug, and
4 Cosmetic Act, 21 U.S.C. 355, as such section existed on January 1, 2014;

5 (25) Ketamine, its salts, isomers, and salts of isomers. Some other
6 names for ketamine: (+/-)-2-(2-chlorophenyl)-2-(methlamino)-
7 cyclohexanone;

8 (26) Tiletamine and zolazepam or any salt thereof. Trade or other
9 names for a tiletamine-zolazepam combination product shall include, but
10 are not limited to: telazol. Trade or other names for tiletamine shall
11 include, but are not limited to: 2-(ethylamino)-2-(2-thienyl)-
12 cyclohexanone. Trade or other names for zolazepam shall include, but are
13 not limited to: 4-(2-fluorophenyl)-6,8-dihydro-1,3,8-
14 trimethylpyrazolo-(3,4-e) (1,4)-diazepin-7(1H)-one, and flupyrzapon; and

15 (27)(A) Xylazine or any of the substances listed below, including
16 their salts, isomers, and salts of isomers whenever the existence of such
17 salts, isomers, and salts of isomers is possible within the specific
18 chemical designation:

- 19 (i) Xylazine-M (2,6-Mich dimethylaniline);
- 20 (ii) Xylazine-M (N-thiourea-2,6-dimethylaniline);
- 21 (iii) Xylazine-M (sulfone-HO-) isomer 2;
- 22 (iv) Xylazine-M (HO-2,6-dimethylaniline isomer 1);
- 23 (v) Xylazine-M (HO-2,6-dimethylaniline isomer 2);
- 24 (vi) Xylazine-M (oxo-);
- 25 (vii) Xylazine-M (HO-) isomer 1;
- 26 (viii) Xylazine-M (HO-) isomer 1 glucuronide;
- 27 (ix) Xylazine-M (HO-) isomer 2;
- 28 (x) Xylazine-M (HO-) isomer 2 glucuronide;
- 29 (xi) Xylazine-M (HO-oxo-) isomer 1;
- 30 (xii) Xylazine-M (HO-oxo-) isomer 1 glucuronide;
- 31 (xiii) Xylazine-M (HO-oxo-) isomer 2;

- 1 (xiv) Xylazine-M (HO-oxo-) isomer 2 glucuronide;
- 2 (xv) Xylazine-M (sulfone); and
- 3 (xvi) Xylazine-M (sulfone-HO-) isomer 1.

4 (B) This subdivision (27) shall not include xylazine when it is used
5 in any of the following manners:

6 (i) Dispensing or prescribing for, or administering to, a nonhuman
7 species a drug containing xylazine that has been approved by the United
8 States Secretary of Health and Human Services under section 512 of the
9 Federal Food, Drug, and Cosmetic Act, 21 U.S.C. 360b, as such act existed
10 on January 1, 2025;

11 (ii) Dispensing or prescribing for, or administering to, a nonhuman
12 species that is permissible under section 512(a)(4) of the Federal Food,
13 Drug, and Cosmetic Act, 21 U.S.C. 360b(a)(4), as such act existed on
14 January 1, 2025;

15 (iii) The manufacturing, distribution, or use of xylazine as an
16 active pharmaceutical ingredient for manufacturing an animal drug that
17 has been approved under section 512 of the Federal Food, Drug, and
18 Cosmetic Act, 21 U.S.C. 360b, or that has been issued an investigational
19 use exemption under section 512(j) of the act, 21 U.S.C. 360b(j), as such
20 act existed on January 1, 2025;

21 (iv) The manufacturing, distribution, or use of a xylazine bulk
22 chemical for pharmaceutical compounding by licensed pharmacists or
23 veterinarians for a nonhuman species in accordance with subdivision (B)
24 (i) or (ii) of this subdivision (27); or

25 (v) Any other use approved or permissible under the Federal Food,
26 Drug, and Cosmetic Act, when dispensed or prescribed for, or administered
27 to, a nonhuman species in accordance with subdivision (B)(i) or (ii) of
28 this subdivision (27).

29 (c) Unless specifically excepted or unless listed in another
30 schedule:

31 (1) Any material, compound, mixture, or preparation containing

1 limited quantities of any of the following narcotic drugs, or any salts
2 calculated as the free anhydrous base or alkaloid, in limited quantities
3 as set forth below:

4 (A) Not more than one and eight-tenths grams of codeine per one
5 hundred milliliters or not more than ninety milligrams per dosage unit,
6 with an equal or greater quantity of an isoquinoline alkaloid of opium;

7 (B) Not more than one and eight-tenths grams of codeine per one
8 hundred milliliters or not more than ninety milligrams per dosage unit,
9 with one or more active, nonnarcotic ingredients in recognized
10 therapeutic amounts;

11 (C) Not more than one and eight-tenths grams of dihydrocodeine per
12 one hundred milliliters or not more than ninety milligrams per dosage
13 unit, with one or more active, nonnarcotic ingredients in recognized
14 therapeutic amounts;

15 (D) Not more than three hundred milligrams of ethylmorphine per one
16 hundred milliliters or not more than fifteen milligrams per dosage unit,
17 with one or more active, nonnarcotic ingredients in recognized
18 therapeutic amounts;

19 (E) Not more than five hundred milligrams of opium per one hundred
20 milliliters or per one hundred grams, or not more than twenty-five
21 milligrams per dosage unit, with one or more active, nonnarcotic
22 ingredients in recognized therapeutic amounts; and

23 (F) Not more than fifty milligrams of morphine per one hundred
24 milliliters or per one hundred grams with one or more active, nonnarcotic
25 ingredients in recognized therapeutic amounts; and

26 (2) Any material, compound, mixture, or preparation containing any
27 of the following narcotic drug or its salts, as set forth below:

28 (A) Buprenorphine.

29 (d) Unless contained on the list of exempt anabolic steroids of the
30 Drug Enforcement Administration of the United States Department of
31 Justice as the list existed on January 31, 2022, any anabolic steroid,

1 which shall include any material, compound, mixture, or preparation
2 containing any quantity of the following substances, including its salts,
3 isomers, and salts of isomers whenever the existence of such salts of
4 isomers is possible within the specific chemical designation:

- 5 (1) 3-beta,17-dihydroxy-5a-androstane;
- 6 (2) 3-alpha,17-beta-dihydroxy-5a-androstane;
- 7 (3) 5-alpha-androstan-3,17-dione;
- 8 (4) 1-androstenediol (3-beta,17-beta-dihydroxy-5-alpha-androst-1-
9 ene);
- 10 (5) 1-androstenediol (3-alpha,17-beta-dihydroxy-5-alpha-androst-1-
11 ene);
- 12 (6) 4-androstenediol (3-beta,17-beta-dihydroxy-androst-5-ene);
- 13 (7) 5-androstenediol (3-beta,17-beta-dihydroxy-androst-5-ene);
- 14 (8) 1-androstenedione ([5-alpha]-androst-1-en-3,17-dione);
- 15 (9) 4-androstenedione (androst-4-en-3,17-dione);
- 16 (10) 5-androstenedione (androst-5-en-3,17-dione);
- 17 (11) Bolasterone (7-alpha,17-alpha-dimethyl-17-beta-
18 hydroxyandrost-4-en-3-one);
- 19 (12) Boldenone (17-beta-hydroxyandrost-1,4-diene-3-one);
- 20 (13) Boldione (androsta-1,4-diene-3,17-3-one);
- 21 (14) Calusterone (7-beta,17-alpha-dimethyl-17-beta-hydroxyandrost-4-
22 en-3-one);
- 23 (15) Clostebol (4-chloro-17-beta-hydroxyandrost-4-en-3-one);
- 24 (16) Dehydrochloromethyltestosterone (4-chloro-17-beta-hydroxy-17-
25 alpha-methyl-androst-1,4-dien-3-one);
- 26 (17) Desoxymethyltestosterone (17-alpha-methyl-5-alpha-androst-2-
27 en-17-beta-ol) (a.k.a. 'madol');
- 28 (18) Delta-1-Dihydrotestosterone (a.k.a. '1-testosterone')(17-beta-
29 hydroxy-5-alpha-androst-1-en-3-one);
- 30 (19) 4-Dihydrotestosterone (17-beta-hydroxy-androstan-3-one);
- 31 (20) Drostanolone (17-beta-hydroxy-2-alpha-methyl-5-alpha-

- 1 androstan-3-one);
- 2 (21) Ethylestrenol (17-alpha-ethyl-17-beta-hydroxyestr-4-ene);
- 3 (22) Fluoxymesterone (9-fluoro-17-alpha-methyl-11-beta,17-beta-
- 4 dihydroxyandrost-4-en-3-one);
- 5 (23) Formebolone (formebolone); (2-formyl-17-alpha-methyl-11-
- 6 alpha,17-beta-dihydroxyandrost-1,4-dien-3-one);
- 7 (24) Furazabol (17-alpha-methyl-17-beta-hydroxyandrostano[2,3-c]-
- 8 furazan);
- 9 (25) 13-beta-ethyl-17-beta-hydroxygon-4-en-3-one;
- 10 (26) 4-hydroxytestosterone (4,17-beta-dihydroxy-androst-4-en-3-one);
- 11 (27) 4-hydroxy-19-nortestosterone (4,17-beta-dihydroxy-estr-4-en-3-
- 12 one);
- 13 (28) Mestanolone (17-alpha-methyl-17-beta-hydroxy-5-androstan-3-
- 14 one);
- 15 (29) Mesterolone (17-alpha-methyl-17-beta-hydroxy-5-androstan-3-
- 16 one);
- 17 (30) Methandienone (17-alpha-methyl-17-beta-hydroxyandrost-1,4-
- 18 dien-3-one);
- 19 (31) Methandriol (17-alpha-methyl-3-beta,17-beta-dihydroxyandrost-5-
- 20 ene);
- 21 (32) Methasterone (2-alpha,17-alpha-dimethyl-5-alpha-androstan-17-
- 22 beta-ol-3-one);
- 23 (33) Methenolone (1-methyl-17-beta-hydroxy-5-alpha-androst-1-en-3-
- 24 one);
- 25 (34) 17-alpha-methyl-3-beta,17-beta-dihydroxy-5a-androstane;
- 26 (35) 17-alpha-methyl-3-alpha,17-beta-dihydroxy-5a-androstane;
- 27 (36) 17-alpha-methyl-3-beta,17-beta-dihydroxyandrost-4-ene;
- 28 (37) 17-alpha-methyl-4-hydroxynandrolone (17-alpha-methyl-4-
- 29 hydroxy-17-beta-hydroxyestr-4-en-3-one);
- 30 (38) Methyldienolone (17-alpha-methyl-17-beta-hydroxyestra-4,9(10)-
- 31 dien-3-one);

- 1 (39) Methyltrienolone (17-alpha-methyl-17-beta-hydroxyestra-4,9,11-
2 trien-3-one);
- 3 (40) Methyltestosterone (17-alpha-methyl-17-beta-hydroxyandrost-4-
4 en-3-one);
- 5 (41) Mibolerone (7-alpha,17-alpha-dimethyl-17-beta-hydroxyestr-4-
6 en-3-one);
- 7 (42) 17-alpha-methyl-delta-1-dihydrotestosterone (17-beta-
8 hydroxy-17-alpha-methyl-5-alpha-androst-1-en-3-one) (a.k.a. '17-alpha-
9 methyl-1-testosterone');
- 10 (43) Nandrolone (17-beta-hydroxyestr-4-en-3-one);
- 11 (44) 19-nor-4-androstenediol (3-beta, 17-beta-dihydroxyestr-4-ene);
- 12 (45) 19-nor-4-androstenediol (3-alpha, 17-beta-dihydroxyestr-4-ene);
- 13 (46) 19-nor-5-androstenediol (3-beta, 17-beta-dihydroxyestr-5-ene);
- 14 (47) 19-nor-5-androstenediol (3-alpha, 17-beta-dihydroxyestr-5-ene);
- 15 (48) 19-nor-4,9(10)-androstadienedione (estra-4,9(10)-diene-3,17-
16 dione);
- 17 (49) 19-nor-4-androstenedione (estr-4-en-3,17-dione);
- 18 (50) 19-nor-5-androstenedione (estr-5-en-3,17-dione);
- 19 (51) Norbolethone (13-beta, 17-alpha-diethyl-17-beta-hydroxygon-4-
20 en-3-one);
- 21 (52) Norclostebol (4-chloro-17-beta-hydroxyestr-4-en-3-one);
- 22 (53) Norethandrolone (17-alpha-ethyl-17-beta-hydroxyestr-4-en-3-
23 one);
- 24 (54) Normethandrolone (17-alpha-methyl-17-beta-hydroxyestr-4-en-3-
25 one);
- 26 (55) Oxandrolone (17-alpha-methyl-17-beta-hydroxy-2-oxa-[5-alpha]-
27 androstan-3-one);
- 28 (56) Oxymesterone (17-alpha-methyl-4,17-beta-dihydroxyandrost-4-
29 en-3-one);
- 30 (57) Oxymetholone (17-alpha-methyl-2-hydroxymethylene-17-beta-
31 hydroxy-[5-alpha]-androstan-3-one);

- 1 (58) Prostanazol (17-beta-hydroxy-5-alpha-androstano[3,2-
2 c]pyrazole);
- 3 (59) Stanazolol (17-alpha-methyl-17-beta-hydroxy-[5-alpha]-
4 androst-2-eno[3,2-c]-pyrazole);
- 5 (60) Stenbolone (17-beta-hydroxy-2-methyl-[5-alpha]-androst-1-en-3-
6 one);
- 7 (61) Testolactone (13-hydroxy-3-oxo-13,17-secoandrosta-1,4-dien-17-
8 oic acid lactone);
- 9 (62) Testosterone (17-beta-hydroxyandrost-4-en-3-one);
- 10 (63) Tetrahydrogestrinone (13-beta, 17-alpha-diethyl-17-beta-
11 hydroxygon-4,9,11-trien-3-one);
- 12 (64) Trenbolone (17-beta-hydroxyestr-4,9,11-trien-3-one);
- 13 (65) [3,2-c]-furazan-5 alpha-androstane-17 beta-ol;
- 14 (66) [3,2-c]pyrazole-androst-4-en-17 beta-ol;
- 15 (67) 17 alpha-methyl-androst-ene-3,17 beta-diol;
- 16 (68) 17 alpha-methyl-androsta-1,4-diene-3,17 beta-diol;
- 17 (69) 17 alpha-methyl-androstan-3-hydroxyimine-17 beta-ol;
- 18 (70) 17 beta-hydroxy-androstano[2,3-d]isoxazole;
- 19 (71) 17 beta-hydroxy-androstano[3,2-c]isoxazole;
- 20 (72) 18a-homo-3-hydroxy-estra-2,5(10)-dien-17-one;
- 21 (73) 2 alpha, 3 alpha-epithio-17 alpha-methyl-5 alpha-androstan-17
22 beta-ol;
- 23 (74) 4-chloro-17 alpha-methyl-17 beta-hydroxy-androst-4-en-3-one;
- 24 (75) 4-chloro-17 alpha-methyl-17 beta-hydroxy-androst-4-en-3,11-
25 dione;
- 26 (76) 4-chloro-17 alpha-methyl-androst-4-ene-3 beta,17 beta-diol;
- 27 (77) 4-chloro-17 alpha-methyl-androsta-1,4-diene-3,17 beta-diol;
- 28 (78) 4-hydroxy-androst-4-ene-3,17-dione;
- 29 (79) 5 alpha-Androstan-3,6,17-trione;
- 30 (80) 6-bromo-androst-1,4-diene-3,17-dione;
- 31 (81) 6-bromo-androstan-3,17-dione;

- 1 (82) 6 alpha-methyl-androst-4-ene-3,17-dione;
- 2 (83) Delta 1-dihydrotestosterone;
- 3 (84) Estra-4,9,11-triene-3,17-dione; and
- 4 (85) Any salt, ester, or ether of a drug or substance described or
- 5 listed in this subdivision if the salt, ester, or ether promotes muscle
- 6 growth.

7 (e) Hallucinogenic substances known as:

- 8 (1) Dronabinol, synthetic, in sesame oil and encapsulated in a soft
- 9 gelatin capsule in a drug product approved by the federal Food and Drug
- 10 Administration. Some other names for dronabinol are (6aR-
- 11 trans)-6a,7,8,10a-tetrahydro-6,6,9-trimethyl-3-pentyl-6H-dibenzo
- 12 (b,d)pyran-1-ol or (-)-delta-9-(trans)-tetrahydrocannabinol.

13 Schedule IV

- 14 (a) Any material, compound, mixture, or preparation which contains
- 15 any quantity of the following substances, including their salts, isomers,
- 16 and salts of isomers whenever the existence of such salts, isomers, and
- 17 salts of isomers is possible within the specific chemical designation:

- 18 (1) Barbital;
- 19 (2) Chloral betaine;
- 20 (3) Chloral hydrate;
- 21 (4) Chlordiazepoxide, but not including librax (chlordiazepoxide
- 22 hydrochloride and clindinium bromide) or menrium (chlordiazepoxide and
- 23 water soluble esterified estrogens);
- 24 (5) Clonazepam;
- 25 (6) Clorazepate;
- 26 (7) Daridorexant;
- 27 (8) Diazepam;
- 28 (9) Ethchlorvynol;
- 29 (10) Ethinamate;
- 30 (11) Flurazepam;
- 31 (12) Mebutamate;

- 1 (13) Meprobamate;
- 2 (14) Methohexital;
- 3 (15) Methylphenobarbital;
- 4 (16) Oxazepam;
- 5 (17) Paraldehyde;
- 6 (18) Petrichloral;
- 7 (19) Phenobarbital;
- 8 (20) Prazepam;
- 9 (21) Alprazolam;
- 10 (22) Bromazepam;
- 11 (23) Camazepam;
- 12 (24) Clobazam;
- 13 (25) Clotiazepam;
- 14 (26) Cloxazolam;
- 15 (27) Delorazepam;
- 16 (28) Estazolam;
- 17 (29) Ethyl loflazepate;
- 18 (30) Fludiazepam;
- 19 (31) Flunitrazepam;
- 20 (32) Halazepam;
- 21 (33) Haloxazolam;
- 22 (34) Ketazolam;
- 23 (35) Loprazolam;
- 24 (36) Lorazepam;
- 25 (37) Lormetazepam;
- 26 (38) Medazepam;
- 27 (39) Nimetazepam;
- 28 (40) Nitrazepam;
- 29 (41) Nordiazepam;
- 30 (42) Oxazolam;
- 31 (43) Pinazepam;

- 1 (44) Temazepam;
- 2 (45) Tetrazepam;
- 3 (46) Triazolam;
- 4 (47) Midazolam;
- 5 (48) Quazepam;
- 6 (49) Zolpidem;
- 7 (50) Dichloralphenazone;
- 8 (51) Zaleplon;
- 9 (52) Zopiclone;
- 10 (53) Fospropofol;
- 11 (54) Alfaxalone;
- 12 (55) Suvorexant;
- 13 (56) Carisoprodol;
- 14 (57) Brexanolone; 3 alpha-hydroxy-5 alpha-pregnan-20-one;
- 15 (58) Lemborexant;
- 16 (59) Solriamfetol; 2-amino-3-phenylpropyl carbamate;
- 17 (60) Remimazolam;
- 18 (61) Serdexmethylphenidate; and
- 19 (62) Zuranolone (1-[2-[(3R,5R,8R,9R,10S,13S,14S,17S)-3-hydroxy-3,13-
- 20 dimethyl-2,4,5,6,7,8,9,10,11,12,14,15,16,17-tetradecahydro-1H-
- 21 cyclopenta[a]phenanthren-17-yl]-2-oxoethyl]pyrazole-4-carbonitrile).
- 22 (b) Unless specifically excepted or unless listed in another
- 23 schedule, any material, compound, mixture, or preparation which contains
- 24 any quantity of the following substances having a stimulant effect on the
- 25 central nervous system, including their salts, isomers, whether optical,
- 26 position, or geometric, and salts of such isomers whenever the existence
- 27 of such salts, isomers, and salts of isomers is possible within the
- 28 specific chemical designation:
- 29 (1) Diethylpropion;
- 30 (2) Phentermine;
- 31 (3) Pemoline, including organometallic complexes and chelates

1 thereof;

2 (4) Mazindol;

3 (5) Pipradrol;

4 (6) SPA, ((-)-1-dimethylamino-1,2-diphenylethane);

5 (7) Cathine. Another name for cathine is ((+)-norpseudoephedrine);

6 (8) Fencamfamin;

7 (9) Fenproporex;

8 (10) Mefenorex;

9 (11) Modafinil; and

10 (12) Sibutramine.

11 (c) Unless specifically excepted or unless listed in another
12 schedule, any material, compound, mixture, or preparation which contains
13 any quantity of the following narcotic drugs, or their salts or isomers
14 calculated as the free anhydrous base or alkaloid, in limited quantities
15 as set forth below:

16 (1) Propoxyphene in manufactured dosage forms;

17 (2) Not more than one milligram of difenoxin and not less than
18 twenty-five micrograms of atropine sulfate per dosage unit; and

19 (3) 2-[(dimethylamino)methyl]-1-(3-methoxyphenyl)cyclohexanol, its
20 salts, optical and geometric isomers, and salts of these isomers to
21 include: Tramadol.

22 (d) Unless specifically excepted or unless listed in another
23 schedule, any material, compound, mixture, or preparation which contains
24 any quantity of the following substances, including their salts:

25 (1) Pentazocine; and

26 (2) Butorphanol (including its optical isomers).

27 (e) Any material, compound, mixture, or preparation which contains
28 any quantity of the following substance, including its salts, isomers,
29 and salts of such isomers, whenever the existence of such salts, isomers,
30 and salts of isomers is possible: Lorcaserin.

31 (f)(1) Unless specifically excepted or unless listed in another

1 schedule, any material, compound, mixture, or preparation which contains
2 any quantity of the following substance, including its salts, optical
3 isomers, and salts of such optical isomers: Ephedrine.

4 (2) The following drug products containing ephedrine, its salts,
5 optical isomers, and salts of such optical isomers, are excepted from
6 subdivision (f)(1) of Schedule IV if they (A) are stored behind a
7 counter, in an area not accessible to customers, or in a locked case so
8 that a customer needs assistance from an employee to access the drug
9 product; (B) are sold by a person, eighteen years of age or older, in the
10 course of his or her employment to a customer eighteen years of age or
11 older with the following restrictions: No customer shall be allowed to
12 purchase, receive, or otherwise acquire more than three and six-tenths
13 grams of ephedrine base during a twenty-four-hour period; no customer
14 shall purchase, receive, or otherwise acquire more than nine grams of
15 ephedrine base during a thirty-day period; and the customer shall display
16 a valid driver's or operator's license, a Nebraska state identification
17 card, a military identification card, an alien registration card, or a
18 passport as proof of identification; (C) are labeled and marketed in a
19 manner consistent with the pertinent OTC Tentative Final or Final
20 Monograph; (D) are manufactured and distributed for legitimate medicinal
21 use in a manner that reduces or eliminates the likelihood of abuse; and
22 (E) are not marketed, advertised, or represented in any manner for the
23 indication of stimulation, mental alertness, euphoria, ecstasy, a buzz or
24 high, heightened sexual performance, or increased muscle mass:

25 (i) Primatene Tablets; and

26 (ii) Bronkaid Dual Action Caplets.

27 (g) Any pharmaceutical composition of crystalline polymorph
28 psilocybin approved by the federal Food and Drug Administration.

29 Schedule V

30 (a) Any compound, mixture, or preparation containing any of the
31 following limited quantities of narcotic drugs or salts calculated as the

1 free anhydrous base or alkaloid, which shall include one or more
2 nonnarcotic active medicinal ingredients in sufficient proportion to
3 confer upon the compound, mixture, or preparation valuable medicinal
4 qualities other than those possessed by the narcotic drug alone:

5 (1) Not more than two hundred milligrams of codeine per one hundred
6 milliliters or per one hundred grams;

7 (2) Not more than one hundred milligrams of dihydrocodeine per one
8 hundred milliliters or per one hundred grams;

9 (3) Not more than one hundred milligrams of ethylmorphine per one
10 hundred milliliters or per one hundred grams;

11 (4) Not more than two and five-tenths milligrams of diphenoxylate
12 and not less than twenty-five micrograms of atropine sulfate per dosage
13 unit;

14 (5) Not more than one hundred milligrams of opium per one hundred
15 milliliters or per one hundred grams; and

16 (6) Not more than five-tenths milligram of difenoxin and not less
17 than twenty-five micrograms of atropine sulfate per dosage unit.

18 (b) Unless specifically exempted or excluded or unless listed in
19 another schedule, any material, compound, mixture, or preparation which
20 contains any quantity of the following substances having a stimulant
21 effect on the central nervous system, including its salts, isomers, and
22 salts of isomers: Pyrovalerone.

23 (c) Unless specifically exempted or excluded or unless listed in
24 another schedule, any material, compound, mixture, or preparation which
25 contains any quantity of the following substances having a depressant
26 effect on the central nervous system, including its salts, isomers, and
27 salts of isomers:

28 (1) Ezogabine (N-(2-amino-4-(4-fluorobenzylamino)-phenyl)-carbamic
29 acid ethyl ester);

30 (2) Ganaxolone;

31 (3) Lacosamide ((R)-2-acetoamido-N-benzyl-3-methoxy-propionamide);

- 1 (4) Pregabalin ((S)-3-(aminomethyl)-5-methylhexanoic acid);
- 2 (5) Brivaracetam ((2S)-2-[(4R)-2-oxo-4-propylpyrrolidin-1-yl]
- 3 butanamide) (also referred to as BRV; UCB-34714; Briviact), including its
- 4 salts;
- 5 (6) Cenobamate; and
- 6 (7) Lasmiditan.
- 7 **Sec. 3.** Original section 28-401, Revised Statutes Cumulative
- 8 Supplement, 2024, and section 28-405, Revised Statutes Supplement, 2025,
- 9 are repealed.